

**Tentative Rulings and Resolution Review Hearings
November 4, 2024
Department 63 (formerly Department 8)**

This Court does not follow the procedures described in Rules of Court, Rule 3.1308(a). Tentative rulings appear on the calendar outside the court department on the date of the hearing, pursuant to California Rule of Court, Rule 3.1308(b)(1). As a courtesy to counsel, the court also posts tentative rulings no less than 12 hours in advance of the time set for hearing. The rulings are posted on the court's website (www.shasta.courts.ca.gov) and are available by clicking on the "Tentative Rulings" link. A party is not required to give notice to the Court or other parties of intent to appear to present argument.

Per Local Rule 5.13, telephonic appearances through CourtCall (888-882-6878; courtcall.com) are generally permitted on the Law & Motion and Resolution Review calendars and can be made without leave of Court.

8:30 a.m. – Law & Motion

ALL AMERICAN EXPRESS, INC. VS. JACKSON, ET AL.

Case Number: 23CV-0202527

Tentative Ruling on Plaintiff's Discovery Motions: Plaintiff All American Express, Inc. has filed: 1) a Motion to Compel Further Interrogatory Responses against Defendant Danyelle Jackson; 2) a Motion to Compel Request for Production Responses against Defendant Danyelle Jackson; 3) a Motion to Compel Further Interrogatory Responses against Defendant Market Express; and 4) a Motion to Compel Request for Production Responses against Defendant Market Express. Despite the titles of the respective motions, each seeks to compel further responses to discovery. A motion to compel further responses requires the parties to meet and confer in good faith prior to the filing of the motion. CCP §§ 2030.300(b)(1) & 2031.310(b)(2). The evidence before the Court is that there was a single attempt to meet and confer on June 19, 2024. The Court finds the evidence insufficient that the parties met and conferred in good faith. Additionally, it appears that portions of the motion may have been made moot by Defendants providing further responses. The Court cannot determine which discovery remains at issue. The Court also notes that only 3 of the 4 motions were opposed and that all motions appear to have been filed untimely. Finally, the Court notes that the discovery appears unverified which may also justify an order compelling responses. The above issues appear to be resolvable through a further good faith meet and confer process. This matter is continued to **Monday, December 16, 2024, at 8:30 a.m. in Department 63.** The parties are ordered to meet and confer in good faith on the discovery issues. The parties are ordered to submit a joint statement regarding the outstanding discovery issues. The joint statement shall be filed no later than December 9, 2024. **No appearance is necessary on today's calendar.**

ASPIRE GENERAL INSURANCE COMPANY VS. ALLISON

Case Number: 22CVG-00899

Tentative Ruling on Order to Show Cause R: Dismissal: An Order to Show Cause Re: Dismissal issued on August 27, 2024 for failure to timely serve and failure to timely prosecute. This litigation was filed on November 2, 2022. CRC 3.740(d) requires service in collection cases within 180 days of the filing of the complaint. No proof of service has ever been filed. The Court finds that Plaintiff is in violation of CRC 3.740(d). In Plaintiff's Declaration filed August 19, 2024, counsel declared that Defendant was served on September 18, 2023. A Proof of Service of Summons has not been filed in this case and the Court has raised this issue with Plaintiff several times, including imposing monetary sanctions for the failure to serve. Plaintiff did not file a written response to the Order to Show Cause Re: Dismissal and no sufficient excuse has been presented for failure to timely serve and prosecute. **An appearance is necessary on today's calendar. Absent good cause being presented, the**

Court intends to dismiss the case without prejudice pursuant to Gov. Code § § 68608(b).

BELTRAN VS. M.K. & A., LLC

Case Number: 23CV-0203159

Tentative Ruling on Order to Show Cause Re: Sanctions: An Order to Show Cause Re: Sanctions issued to Plaintiff's counsel Travis E. Stroud for failing to appear at the hearing September 16, 2024. Counsel had notice of the hearing as evidenced in the Notice of Entry of Order filed on May 8, 2024 and the Court's Tentative Ruling on August 26, 2024. Additionally, Plaintiff filed a motion that was noticed for September 16, 2024. Counsel did not file a written response to the Order to Show Cause. Instead, a Substitution of Attorney was filed on October 30, 2024 and Plaintiff now has new counsel. With no sufficient excuse for the non-appearance, sanctions are imposed against Travis E. Stroud in the amount of \$250. The clerk is directed to prepare a separate Order of Sanctions. **No appearance is necessary at 8:30 a.m., however, the matter will be called at 9:00 a.m. where the Court will expect an appearance by new counsel.**

COLBURN VS. CITY OF REDDING, ET AL.

Case Number: 23CV-0202762

Tentative Ruling on Motion for Summary Judgment: This is a personal injury action, brought by Plaintiff Yvonne Colburn. Plaintiff alleges she tripped and fell on a city sidewalk on July 12, 2022, and sustained injuries. Her Amended Complaint alleges one cause of action: premises liability, for a dangerous condition on public property. Defendant is the City of Redding ("City"). The City has also filed a Cross-Complaint for indemnity and equitable contribution against Linda Olson, as Trustee for the Olson Family Trust. The City moves for summary judgment. Plaintiff opposes the motion.

Request for Judicial Notice: The City's request for judicial notice of the Amended Complaint is granted.

Objections to Evidence: Plaintiff's objections to evidence are overruled. City's objections to evidence numbers 1-7, and 9 are overruled. City's objections to evidence numbers 8 and 10 are sustained.

Standard on Summary Judgment: The party moving for summary judgment bears the initial burden to make a prima facie showing that there are no triable issues of material fact. *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850. There is a genuine issue of material fact only if the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof. *Id.* at 845. A defendant has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action. Once the defendant has met that burden, the burden shifts to the plaintiff to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. CCP § 437c(p)(1). The plaintiff or cross-complainant shall not rely upon the allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific facts showing that a triable issue of material fact exists as to the cause of action or a defense thereto. CCP § 437c(p)(2).

In ruling on a motion for summary judgment, the Court must consider not only the direct evidence presented, but also reasonable inferences to be drawn therefrom, and must view the evidence and inferences "in the light most favorable to the opposing party." CCP § 437c(c); *Aguilar v. Atlantic Richfield Co.*, *supra*, 25 Cal.4th at 843. "Because summary judgment is a drastic measure that deprives the losing party of trial on the merits, it may not be invoked unless it is clear from the declarations that there are no triable issues of material fact." *Johnson v. Superior Court* (2006) 143 Cal.App.4th 297, 304.

Premises Liability for a Dangerous Condition of Public Property: "Except as provided by statute, a public entity is liable for injury caused by a dangerous condition of its property if the plaintiff establishes that the property was